

Ram Bhawan Singh v. Chief Managing Director, U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 2 January 2025 · 2025:AHC:386-DB · Writ-C No. 37805 of 2024 · **Writ withdrawn; relegated to CGRF under para 7.10.**

HEADNOTE

A Division Bench permitted withdrawal of a writ raising a grievance already earlier sent to the Consumer Grievance Redressal Forum under paragraph 7.10 of the U.P. Electricity Supply Code, 2005, and relegated the petitioner to that same 7.10 remedy, directing the competent authority to decide in accordance with law if the grievance was raised within two weeks with a certified copy of the order.

FACTUAL SUMMARY

Ram Bhawan Singh filed a writ against the Chairman/CMD of Uttar Pradesh Power Corporation and another. A similar grievance of his had already been directed, by order dated 16 October 2015 in Writ Petition No. 58408 of 2015, to the Consumer Grievance Redressal Forum under paragraph 7.10 of the U.P. Electricity Supply Code, 2005. After hearing counsel for the petitioner and the Corporation, the Court dealt with the present petition on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF/forum route for grievances

HOLDING

Where a similar grievance had already been directed to the Consumer Grievance Redressal Forum under paragraph 7.10 of the U.P. Electricity Supply Code, 2005, the petitioner was permitted to withdraw the subsequent writ and avail that 7.10 remedy. If the grievance is raised within two weeks with a certified copy of the order, the competent authority shall take an appropriate decision in accordance with law, after notice to the party aggrieved, expeditiously. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCE

Left to the competent authority under paragraph 7.10. ¶ 2-3